

PROFESSIONAL SERVICES CONTRACT

This Contract for Professional Services (the "Contract") is by and between the Detroit Library Commission (the "DLC"), doing business as the Detroit Public Library (the "DPL") a Michigan Public Library, whose principal place of business is located at 5201 Woodward Ave, Detroit, Michigan 48202, and Contractor Name, a [State] [Entity Type], whose principal place of business is located at Contractor Address (the "Contractor") (the Commission and the Contractor are collectively referred to as , the "Parties").

1. Term

1.1 Initial Term

The initial term of this Contract commences on [Start Date], and shall terminate [End Date], subject to earlier termination as provided under Paragraph 11 (the "Initial Term").

1.2 Extension Terms

The Commission has the option to extend the Initial Term of this Contract for up to three (3) successive additional one year periods (the "Extension Terms").

2. Purpose

This Contract is entered into for the purpose of Describe Contract Purpose.

3. Scope of Work

The Contractor agrees to perform the services described on Exhibit A (the "Services"). Scope of Service should reflect those described in the RFP and/or the services mutually agreed upon by the bid winner and the Library.

4. Compensation

Select only one of the two Compensation Options (Unit Rate, Budget or Flat Fee) and delete this sentence and the other Compensation Options:

Unit Rate. The Contractor shall be paid according to the rates identified on Exhibit A. The total amount paid to the Contractor shall not exceed \$. The Contractor must provide to the DPL monthly invoices in a form acceptable to the DPL, along with any necessary supporting documentation such as time sheets. The DPL will pay the Contractor within forty-five (45) days of the DPL's acceptance of the invoice and supporting documentation submitted electronically to accountspayables@detroitpubliclibrary.org.

4.1 If requested in writing by the Contractor, and supported by good cause, the Contract Administrator of the DLC may authorize a transfer between Budget

line items of up to 10% of the total annual Budget for during the Term of the Contract. No such transfer is permitted unless and until authorized and approved in writing by the DLC Contract Administrator.

- 4.2 The DPL will not approve any expense unless identified in the Budget, and the DPL will not pay any expenses in excess of the amounts identified in the Budget without additional approval by the DLC.

Flat Fee. The Contractor shall be paid a flat fee of \$ [redacted] for the performance of the Services. Upon completion of the Services, the Contractor must provide to the DPL an invoice in a form acceptable to the DPL, along with any necessary supporting documentation.

5. **Taxes.** The DLC is a Michigan Municipal Corporation. The Contractor acknowledges that the DLC is exempt from Federal Excise Tax and Michigan Sales Tax.

6. **Contract Administrator**

The contract administrator for this Contract is [Contract Administrator] (the "Contract Administrator"). The Contractor acknowledges that the Contract Administrator is the primary DPL contact for notices and instructions related to this Contract. The Contractor agrees to provide a copy of all notices related to this Contract to the Contract Administrator. Contract Administrator will provide copies to the Offices of the Executive Director and Chief Financial Officer.

7. **Reporting Requirements**

During the term of this Contract, the Contractor must provide to the Contract Administrator the reports identified and described on Exhibit B.

8. **Inspection and Acceptance**

All Services (and related goods) are received subject to inspection and testing for conformity with the approved specifications. If Services are defective or fail to meet the specifications, the DLC shall have the right to reject the services or to require the Contractor to correct the defects. The Contractor shall promptly correct the defects at no cost to the DLC or pay the DPL for expenses incurred by the DLC in correcting the defects. DLC shall promptly notify the contractor of defective or rejected Services. Should the Contractor fail to replace the defective Services with conforming Services or to correct the defective Services on a timely basis, as determined by DPL, then DLC may dispose of the defective or rejected Services (and the related goods) whereupon DLC shall have no further liability to the Contractor. The Contractor is responsible for the costs of handling, packing, and transportation incurred in returning or disposing of defective or rejected Services.

9. **Warranties**

The Contractor warrants that:

- 9.1 The Services will be performed in a good and workmanlike manner and in accordance with generally acceptable practices in the industry.
- 9.2 For a period of one (1) year following completion of the Services, the Services and any goods provided with the Services shall conform to the representations made by the Contractor.
- 9.3 The Contractor will comply with all federal, state, and local laws in the performance of the Services.
- 9.4 The Contractor will comply with the requirements of any federal or state grants used to fund or support this Contract.
- 9.5 The Contractor will obtain and maintain all applicable licenses and permits necessary to provide the Services for the entire term of this Contract.

The Contractor agrees to defend, hold harmless and indemnify the DLC, its officials, officers, agents, and employees harmless from any and all claims, damages, losses or liability, including defense costs, arising out of the Contractor's breach of the foregoing warranties as well as the Contractor's performance of the Services.

10. Suspension of Work

10.1 Order to Suspend Performance

Upon written order of the Contract Administrator, the Contractor agrees to immediately suspend performance of the Services. The Contractor shall not be entitled to compensation for any Services performed during any period in which the Contract Administrator has directed that the Services be suspended.

10.2 Necessary Actions Before Suspension

If immediate suspension of the Services would cause harm, injury, or damage to persons or property, the Contractor must immediately notify the Contract Administrator of the nature of such harm, injury, or damage, and obtain written authorization from the Contract Administrator to take such necessary action as to prevent or minimize such harm, injury or damage. Actions authorized by the Contract Administrator pursuant to this paragraph are compensable to the Contractor for suspended services to minimize harm or injury.

11. Termination

11.1 Termination for Cause

If the Contractor is in breach of any provision of this Contract, and such breach continues for fourteen (14) days after written notice is issued to the Contractor by the DLC of the breach, the DLC may terminate this Contract. Such termination for cause is effective upon receipt of the notice of termination by the Contractor.

In addition to any other remedies provided by law in equity or under or this Contract, the Contractor shall be responsible for all costs incurred by the DLC as a result of the Contractor's breach and termination, including any costs to obtain substitute performance.

11.2 Immediate Termination

If the DLC, in its discretion, determines that the Contractor's breach of this Contract constitutes a threat to public health, safety, or welfare, the DLC may terminate this Contract immediately upon notice to the Contractor.

In addition to any other remedies provided by law or in equity or under this Contract, the Contractor shall be responsible for all costs incurred by the DLC as a result of the Contractor's breach and termination, including any costs to obtain substitute performance.

11.3 Termination for Convenience

If the DLC determines that it is in the DLC's best interests, the DLC may terminate this Contract upon thirty (30) days written notice to the Contractor.

The DLC shall pay for all Services properly performed up to the effective date of the notice of termination.

11.4 Termination for Lack of Funding

If this Contract is funded by public funds or a grant from a public or private entity, and the funds are not appropriated or the grant is discontinued, the DLC may terminate this Contract by written notice specifying the date of termination.

The DLC shall pay for all Services properly performed up to the effective date of the notice of termination.

12. Equipment Purchased with Library Funds

12.1 Reporting

The Contractor agrees that any Equipment purchased for the performance of the Services with funds supplied by the DLC under this Contract must be reported to the Contract Administrator upon purchase. For the purposes of this paragraph, Equipment is defined as tangible, non-expendable, personal property having useful life of more than 1 year and an acquisition cost of \$5,000 or more per unit.

12.2 Conveyance to the DLC

Upon the DLC's request at the termination of this Contract for any reason, the Contractor agrees to convey to the DLC all title in any Equipment purchased for the performance of the Services with funds supplied by the DLC under this Contract.

13. Nondiscrimination

The Contractor covenants that it will not discriminate against an employee or applicant of employment with respect to hire, tenure, terms, conditions, or privileges of employment, or a matter directly or indirectly related to employment, because of race, color, religion, national origin, age, sex, height, weight, marital status or a disability that is unrelated to the individual's ability to perform the duties of a particular job or position, and that it will require the same non-discrimination assurances from any subcontractor who may be used to carry out duties described in this contract. Contractor covenants that it will not discriminate against businesses that are owned by women, minorities or persons with disabilities in providing services covered by this Contract, and that it shall require the same assurances from subcontractors. Breach of this covenant shall be regarded as a material breach of this contract.

14. Freedom of Information Act

This Contract and all attachments, as well as all other information submitted by the Contractor to the DLC, are subject to disclosure under the provisions of MCL 15.231, *et seq.*, known as the "Freedom of Information Act".

15. Intellectual Property

Any intellectual property created by the Contractor in the performance of the Services shall be considered a work made for hire, and any and all rights in such intellectual property shall belong solely to the DLC. Upon the DLC's request, the Contractor agrees to execute any documents necessary to convey ownership of such intellectual property to the DLC.

16. Audit Rights

16.1 Certification of Accurate Information

Contractor certifies that all information provided to the DLC by the Contractor relating to the award or modification of this Contract, or any payment or dispute related to this Contract, is true and correct. The Contractor further certifies that its accounting system conforms to generally accepted accounting principles.

16.2 Inspection

The Contractor agrees that the DLC may inspect the Contractor's plant, place of business, or worksite to ensure compliance with the terms of this Contract. If this Contract is funded or supported with any state or federal grant funds, the state or federal agencies responsible for administering the applicable grants may examine the Contractor's plant, place of business, or worksite to ensure compliance with the terms of this Contract and the terms of the applicable grant.

16.3 Audit

The Contractor agrees that the DLC may examine the Contractor's records to ensure compliance with the terms of this Contract. If this Contract is funded or supported with any state or federal grant funds, the state or federal agencies responsible for administering the applicable grants may examine the Contractor's records to ensure compliance with the terms of this Contract and the terms of the applicable grant.

16.4 Records Retention

The Contractor agrees to maintain any business records related to this Contract or the Contractor's performance under this Contract for a period of at least three (3) years after final payment.

17. Identity Theft Prevention

17.1 In the event that the Contractor will obtain identifying information during the performance of the Services, the Contractor must take reasonable precautions to ensure that such identifying information is protected from unauthorized disclosure and is used only for the purpose of performing the Services.

17.2 For the purposes of Paragraph 17.1, "identifying information" means any name or number that may be used, alone or in conjunction with any other information, to identify a specific person, including but not limited to name, address, telephone number, social security number, date of birth, driver's license number, taxpayer identification number, or routing code.

18. Insurance Requirements and Indemnification

The Contractor shall not commence Services under this Contract until it has procured and provided evidence of the insurance required under this Paragraph. The Contractor agrees to obtain insurance coverage of the types and amounts required as set forth in the Insurance Checklist attached as Exhibit C and keep such insurance coverage in force throughout the duration of this Contract.

- 18.1 Commercial General Liability coverage of not less than one million dollars (\$1,000,000) combined single limit with the DLC named as an Additional Insured Party. This coverage shall be written on an ISO occurrence basis form and shall include: Bodily Injury, Personal Injury, Property Damage, Contractual Liability, Products and Completed Operations, Independent Contractors; Broad Form Commercial General Liability Endorsement, (XCU) Exclusions deleted and a per contract aggregate coverage. This coverage shall be primary to the Additional Insureds, and not contributing with any other insurance or similar protection available to the Additional Insureds, whether said other available coverage be primary, contributing or excess.

Workers' Compensation Insurance in accordance with Michigan statutory requirements including Employers Liability coverage.

Commercial Automobile Insurance in the amount of not less than One Million Dollars (\$1,000,000) combined single limit per accident with the DLC named as an Additional Insured Party. This coverage shall be written on ISO business Auto forms covering Automobile Liability, code 1 any auto.

Professional Liability - Errors and Omissions. Architects, civil engineers, landscape design specialists and other professional services providers involved with the performance of Services must provide the DLC with evidence of Professional Liability coverage in an amount not less than one million dollars (\$1,000,000). Evidence of this coverage must be provided for a minimum of three years after project completion.

18.2 Insurance Certificate and Additional Insured Coverage

The Contractor further agrees to provide certificates of insurance to the DLC evidencing the coverages specified in Paragraph 18.1. Additional Insured Party coverage may be by proof of blanket additional insured coverage within the general liability policy or as provided by an endorsement specifying the DLC as an additional insured to the policy. Contractor's agent must provide a copy of the endorsement or language from the policy with the certificate of insurance.

18.3 Indemnification

The Contractor agrees to indemnify and hold the DLC, its officials, officers, agents, and employees harmless from any and all claims, damages, or liability, including defense costs, arising out of the Contractor's performance of the Services or presence on the DLC's property or worksite.

19. Independent Contractor

The Contractor and its agents and employees are independent contractors and are not the employees of the DLC. The Contract must be currently listed as a qualified vendor with the City of Detroit.

20. General Provisions

20.1 Entire Contract

This Contract, consisting of the following documents and Exhibits, embodies the entire Contract between the Parties.

20.1.1. The Contract – This Professional Services Contract

20.1.2. Exhibit A – The Scope of Work

20.1.3. Exhibit B – Required Reports

20.1.4. Exhibit C – The Contractor's Projected Budget

There are no promises, terms, conditions, or obligations relating to the Services other than those contained herein. In the event of a conflict between this Contract and any Exhibit, the terms of this Contract shall control.

20.2 No Assignment

The Contractor may not assign or subcontract this Contract or any of the Services without the express written consent of the DLC.

20.3 Modification

This Contract may be modified only in writing executed by the Contractor and the DLC with the same formalities as this Contract.

20.4 Binding Effect

The provisions of this Contract shall apply to and bind the respective heirs, executors, administrators, and assigns of the Contractor and the DLC.

20.5 Headings

The paragraph headings in this Contract are used only for ease of reference, and do not limit, modify, construe, and or interpret any provision of this Contract.

20.6 Governing Law and Venue

This Contract is entered into under the laws of the State of Michigan. Any litigation between the Parties arising out of this Contract must be initiated within two years of the cause of action accruing and must be brought in a court of competent jurisdiction in Wayne County, Michigan.

20.7 Severability and Survival

In the event that any provision of this Contract is deemed by any court of competent jurisdiction to be legally ineffective, such decision shall have no effect on the remaining provisions of this Contract.

20.8 Interpretation

Each Party has had opportunity to have this Contract reviewed by legal counsel and has had equal opportunity to contribute to its contents. In the event of any dispute concerning the interpretation of this Contract, there shall be no presumption in favor of any interpretation solely because the form of this Contract was initially prepared by the DLC.

20.9 Remedies

All remedies specified in this Contract are non-exclusive. The DLC reserves the right to seek any and all remedies available under this Contract and applicable law or in equity in the event that the Contractor fails to abide by the terms of this Contract.

IN WITNESS WHEREOF, the Parties have caused this Contract to be executed by their duly authorized agents.

CONTRACTOR NAME

DETROIT PUBLIC LIBRARY

By: _____
Name of Contractor Signatory
Title of Contractor Signatory

By: _____
Representative of the
Detroit Public Library

Date: _____

Date: _____

EXHIBIT A
Description of the Services

Describe the Services to be performed by the Contractor

SAMPLE

EXHIBIT B
Reports Required from the Contractor

Description of Report

Name and content of report

Frequency

How often?

If none, write NONE.

SAMPLE

EXHIBIT C
Contractor's Projected Budget
Date to Date

If this is not a budget reimbursement contract, delete this Exhibit.

SAMPLE

GENERAL CONDITIONS

1. *Procurement Policy*

Procurement for the Detroit Public Library, shall be carried out in a manner which provides a fair opportunity to all eligible bidders to participate. This bid shall be made without collusion with any other person, firm or corporation making any bid or proposal, or who otherwise make a bid or proposal.

2. *Non-Discrimination Clause*

In accordance with all Federal and State legislation and Regulations governing Fair Employment. Including but not limited to, Title VII of the Civil Rights Act of 1964, the Civil Rights Act and the Persons with Disabilities Civil Rights Act, the bidder agrees that it will not discriminate against employees or applicants for employment with respect to hire, tenure, terms, conditions or privileges of employment because of religion, race, color, national origin, age, sex, height, weight, marital status or handicap that is unrelated to the ability of the individual to perform the duties of a particular assignment or position. The bidder recognizes the right of the United States and the State of Michigan to seek judicial enforcement of the foregoing covenants against the bidder or its subcontractors, or both, in order to provide for efficient cooperation and coordination in the handling of Contract compliance programs as provided in the Elliott-Larsen Civil Rights Act, as amended, and the Persons with Disabilities Civil Rights Act, as amended. The bidder agrees to include this paragraph in any subcontract. Breach of this covenant may be regarded as a material breach of the Contract.

3. *Unit Prices, Notations, and Workmanship*

Prices and notations must be typed or in ink. Prices shall be for new items only unless specified otherwise in this Formal Bid Document. No erasures or "white-outs" are permitted. Mistakes may be crossed out and corrections entered and initialed in ink by the persons signing the bid document. Unit prices shall be stated based on units specified. The bidder may quote on all or a portion of a quantity as specified. Quote on each item separately and indicate brand name or make. All materials furnished must be new, of latest model and standard first-grade quality, of best workmanship and design, unless expressly specified.

4. *Prices Quoted/Cash Discounts*

Prices quoted must be net of discounts. Cash discounts will be considered in the determination of low bidder, provided discounts are based on periods of 30 days or more after acceptance of goods or billing on a bidder's invoice, whichever is later. Where net is equal to bid with cash discount deducted, award will be made to the net bid. The bidder shall extend and total the bids.

5. *Sales Tax Exemption*

The Library is exempt from sales tax on those articles which the Library buys for its own use. Articles bought by the bidder and incorporated into other products are taxable to the bidder. Such tax should be included in the price and will not be paid as an extra by the Library. Sales tax should be included in the price and will not be paid as an extra by the Library.

6. *Specifications, Change of Specification, Errors and/or Omissions*

Specifications which refer to brand names are given for reference only. Bidders may quote on equivalent articles, provided that brand name and catalog number(s) and any deviations are noted on the bid form and complete descriptive literature is furnished. Exceptions will state "Do Not Substitute." The decision of the Library shall be final.

If any of the terms and conditions prevent you from bidding, or if you wish to request revisions of specifications, or a change in quantity which will result in lower unit cost to the Library, or get an interpretation, your request will receive consideration if presented to the Library as much in advance of bid submission deadline as possible. If any change is found desirable, the Library will notify all bidders and extend the bid submission date, if necessary. Bidders are not permitted to take advantage of any errors or omissions in specifications since full instructions will be given should they be discovered before the bid submission date.

7. *Deliver Terms/Time*

F.O.B. delivered prices are preferred. F.O.B. delivered means delivered to the dock of the institution of department noted on the bid, and will include all charges for packing, draying, etc. Bidder may, at their option, quote F.O.B. shipping point. Prices based on F.O.B. Shipping Point will be considered after adding transportation charges and insurance costs. Bidders must show shipping weight and point of shipments on all shipping point bids. Delivery time is a part of the consideration and must be adhered to. If time varies on different items, the bidder shall so state.

8. *Container*

Packing, reels, etc. if chargeable, must be shown on separate items. Return freight must be paid by bidder.

9. *Labeling of Envelopes*

Bidders must label envelopes containing bid – "This envelope contains bid on (Bid number), due on or before (-time) on (-date)." A label may be attached for convenience. The name and address of the bidder are to appear on the outside of the envelope.

10. *Receipt of Bids*

Bids must be received by the Library, 5201 Woodward Avenue, Detroit, MI 48202, prior to or on the date and time specified on the face of this bid form. Late bids cannot be accepted. The responsibility of getting bids to the Library on time rests entirely with the bidder.

11. *Withdrawal*

No bid shall be withdrawn for ninety (90) days from submission deadline unless otherwise stated in the bid document. Bidders may reduce this period if stated on bid, but such bids may be rejected on the basis of the reduced time period.

12. Award

The Library reserves the unqualified right to award by item (s) unless otherwise stipulated, to waive any irregularity in any bid or to reject any and all bids when, in the best interest of the Library.

13. Start of Work

No Contract shall become effective until the contract has been approved by the Procurement Department, Chief Financial Officer and/or Library Commission. Prior to the completion of this approval process, the Contractor will have no authority to being work on this Contract. The Chief Financial Officer shall not authorize any payments to the Contractor prior to such approval. Additionally, the Library shall not incur any liability to reimburse the Contractor regarding any expenditure for the purchase of materials or the payment of services.

14. Inspection

All articles are subject to inspection and testing. In the case where any articles are found to be defective in material, workmanship and/or fail to meet the requirements of this bid, the Library shall have the right to reject or retain and correct such articles. The bidder shall pay the Library for expenses incurred in correcting defects. Rejected articles will be returned to bidders at their expense for handling, packing and transportation.

15. Freight Rates

Unless otherwise stated, any increase in published freight rates after submission deadline will be added to the Contract price, and conversely any decrease in the published freight rates will be deducted from the contract prices. This applies only to movement of the finished product as sold to the Library.

16. Subcontracting

None of the services covered by this Contract shall be subcontracted without the prior, written approval of the Library.

17. Assignment

The performance of the Services under the Contract shall not be assigned by Contractor except upon written consent of Detroit Public Library. The Contractor may assign monies due or to become due to him under the Contract and such assignment will be recognized by Detroit Public Library, if given proper notice thereof, to the extent permitted by law. Assignment of monies will be subjected to proper offsets in favor of the Detroit Public Library and to deductions provided for in this Contract. Money withheld, whether assigned or not, will be subject to being used by Detroit Public Library for the completion of the work in the event that the Contractor defaults under the Contract. The validity of the assignment and the rights of the assignee against Detroit Public Library shall be governed by the laws of the State of Michigan. The Detroit Public Library reserves the right to assign all or portion of the services awarded under this Contract including options. The Detroit Public Library's right of assignment will remain in force over the period of the Contract or until completion of the Contract to include options whichever occurs first.

18. *Independent Contractor*

It is understood and agreed that the Contractor shall be deemed to be an independent contractor in all its operations and activities hereunder; that the employees furnished by the Contractor to perform Work hereunder shall be deemed to be Contractor's employees or independent subcontractors; that Contractor employees shall be responsible for all obligations and reports covering social security, unemployment insurance, income tax, and other reports and deductions required by state or federal law.

19. *Severability*

If any provision of this Contract or the application thereof to any person or circumstance, is rendered or declared illegal for any reason and shall be invalid or unenforceable, the remainder of this Contract and the application of such provision to other persons or circumstances shall not be affected thereby but shall be enforced to the greatest extent permitted by applicable law.

20. *Waivers*

- A. Neither Detroit Public Library's review, approval or acceptance of, nor payment for, the services required under this Contract shall be construed to operate as a waiver of any rights under this Contract or of any cause of action arising out of the performance of the Contract, and the Contractor shall be and remain liable to Detroit Public Library in accordance with applicable law and the terms of this Contract for all damages to Detroit Public Library caused by the Contractor's negligent act, error or omission in the performance of any of the Work furnished under this Contract.
- B. The waiver by Detroit Public Library of any breach of any term, covenant, condition, or agreement herein contained shall not be deemed to be a waiver of any subsequent breach of the same, or of a breach of any other term, covenant, condition, or agreement herein contained.

21. *Force Majeure*

- A. To the extent that Contractor shall be wholly or partially prevented from its performance within the terms specified of any obligation or duty placed on Contractor by reason of or through riot, acts of war, acts of terrorism, insurrection, by order of court, legislative action, act of God, or specific cause reasonably beyond the parties' control and not attributable to its neglect or nonfeasance, in such event, the time for the performance of such obligation or duty may be suspended until such disability to perform is removed. Determination of force majeure shall rest solely with Detroit Public Library.
- B. In the event Contractor seeks to characterize an event a "Force Majeure Event", Contractor shall have the obligation to immediately notify Detroit Public Library at the time Contractor becomes aware of said Force Majeure event. Further, Contractor shall have the obligation to provide Detroit Public Library with written notice upon the cessation of said Force Majeure event.

22. Termination

The Contractor agrees that the Library shall have the right to terminate the Contract at any time after award of the Contract, by giving ten (10) days written notice, if it is determined that such termination is in the best interest of the Library. Upon receipt of written notice of termination, the Contractor shall cease performance to the extent specified in the notice of termination. In the event of termination in whole, the Contractor shall prepare a final invoice within thirty (30) calendar days of such termination reflecting any service(s) actually furnished pursuant to the Contract and to the satisfaction of Detroit Public Library.

Detroit Public Library agrees to pay the Contractor, in accordance with the terms of the Contract, for conforming service(s) actually furnished and verifiable costs that have been incurred or will be incurred by the termination, which shall be the sole amount owed to the Contractor whether for damages or otherwise, by virtue of the termination of this Contract.

23. Default

Default is defined as the failure of the bidder to fulfill the obligations of their bid. An event of default shall be construed as a material breach of this contract. Detroit Public Library may by written notice of default to the Contractor, terminate this Contract in whole or in part if the Contractor fails to perform the services within the time and in the manner specified in this Contract or any extension thereof; or fails to perform any of the other provisions of this Contract.

Detroit Public Library's right to terminate this Contract may be exercised if the Contractor does not cure the condition or conditions constituting default within ten (10) calendar days (or such longer period as may be authorized in writing by the Purchasing Manager) after receipt of the notice from the Procurement Department.

24. Damages for Breach of Contract

The contractor shall be liable to the Library for any damages it sustains by virtue of the contractor's breach, or any reasonable costs the Library might incur enforcing or attempting to enforce this contract, including reasonable attorney fees. The Library may withhold any payment(s) to the contractor for the purpose of set-off until such time as the exact amount of damages due to the Library from the contractor is determined. It is expressly understood that the contractor will remain liable for any damages the Library sustains in excess of set-off.

If the contract is so terminated for breach of contract, the Library may take over the services, and pursue the same to completion by contracting with another party or otherwise, and the contractor shall be liable to the Library for any and all costs.

The Library may assess upon the contractor, for failure to meet any provision or condition of the bid, damages up to the amount of 15% or the amount of the cost incurred for the breach.

Other remedies shall also be available to the Library. The previous provisions outlined herein shall be in addition to any and all other legal or equitable remedies permissible.

25. Audit, Inspection or Records and Cost Verification

The Library reserves the right to audit employees' payroll records to verify labor charges upon 72 hours' notice.

The contractor shall permit the authorized representative of the Library to inspect and audit all Data and records of the contractor relating to its performance under this contract during the term of the contract and for three (3) years after final payment. All records relating to the agreement shall be retained by the contractor during the term of the contract and for three (3) years after final payment for the purpose of such audit and inspection.

26. Compliance with Laws and Security Regulations

The contractor shall comply with and shall require its associates to comply with:

1. Applicable federal, state and local laws, ordinance code(s) regulations and policies, including, but not limited to, all security regulations in effect from time to time on the Library's premises;
2. Codes and regulations for materials, belonging to the Library or developed in relationship to this project externally; and
3. The requirements of the grantor agency when grant funds that are specifically related to this contract are expended.

The contractor shall hold the Library harmless with respect to any damages arising from any violations of same by it or its associates. The contractor shall not trespass on any public or private property in performing any of the services encompassed by this contract. The contractor shall require, as part of any subcontract that subcontractors comply with all applicable laws and regulations.

27. Patents

The contractor shall protect and indemnify the Library against expense of any nature, shall bear the cost of any lawsuits which may arise and shall pay damages which may be awarded against the City for the use, under this specification, of any patented device, process, apparatus, material or invention.

28. Indemnity

The contractor agrees to save harmless the Library against and from any and all liabilities, obligations, damages, penalties, claim costs, charges, losses and expenses (including without limitation, fees and expenses for attorneys, expert witnesses and other consultants), which may be imposed upon, incurred by or asserted against the Library by reason of any negligent or tortuous acts or any failure by the contractor to perform its contractual obligations during the term of this contract. This provision shall apply to all matters whether litigated or not, and shall include disputes between the contractor, the Detroit Public Library and any negligent or tortuous errors or omissions attributable to the contractor, its subcontractors or agents.

29. *Use of Detroit Public Library's Name in Contractor Advertising or Public Relations*

If the Contractor should desire to use the Detroit Public Library's name, logo or any other material in its advertisement or public relations programs, the Contractor shall receive prior approval from the Detroit Public Library. Any such information relating to Detroit Public Library shall be factual and in no way imply that Detroit Public Library endorses the Contractor's firm, services, or products. The Contractor shall insert the substance of this Article in each subcontract and supply contract or purchase order.

30. *Conflict of Interest*

The contractor covenants that it presently has no interest and shall not acquire any interest, direct or indirect, which could conflict in any manner or degree with the performance of the services under this contract. The contractor further covenants that in the performance of this contract no person having any such interest shall be employed.

The contractor further covenants that no officer, agent, or employee of the Detroit Public Library and/or Library Commission who exercise any functions or responsibilities in the review or approval of the undertaking or carrying out of this contract has any personal or financial interest, direct or indirect, in this contract or in the proceeds thereof via corporate entity, partnership, or otherwise.

The contractor also hereby warrants that it will not and has not employed any person to solicit or secure this contract upon any agreement or arrangement for payment of a commission, percentage, brokerage, contingent fee, other than bona fide employees working solely for the contractor either directly or indirectly, and that if this warranty is breached, the Library, may at its option, terminate this contract without penalty, liability or obligation, or may, at its election, deduct from any amounts owed to the contractor hereunder, any amounts of any such commission, percentage, brokerage, or contingent fee.

31. *Addresses*

The contractor shall notify the Library upon any change of address, telephone number, and email address, where applicable, within five (5) business days of such change. The notice shall be delivered in writing to the Procurement Department and shall include all of the contractor's changed information and the effective date of such change.

32. *Taxpayer Identification Number*

The contractor shall notify the Procurement Department upon the change of the contractor's taxpayer identification number. Such notification shall be in writing, shall include at a minimum, the contractor's taxpayer identification number in used by the City, the contractor's new taxpayer identification number and all contract and purchase order numbers under which the contractor is currently providing goods and/or services to the Library. The notification shall be delivered to the Library within five (5) business days of the contractor's receipt of confirmation of the registration of the new taxpayer identification number by the Internal Revenue Service. Failure to supply the required information, may be deemed an event of default at the sole discretion of the Library.

**INSTALLATION OF RUBBER FLOOR TILE –
CHILDREN’S AREA
AT
MONTEITH BRANCH LIBRARY**

Prepared by:

***IFB-TL-2170
Issue Date: February 11, 2026
Bid Due Date: March 4, 2026 by 2:00 p.m. EST***



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IFB-TL-2170

The Detroit Public Library (DPL) is seeking bids from qualified contractors to remove existing flooring and furnish and install new rubber floor tile in the Children's Area of the Monteith Branch Library. This project is intended to improve safety, durability, and functionality of the space while supporting the Library's ongoing commitment to maintaining accessible, code-compliant, and well-maintained facilities.

Bids are to be submitted electronically via www.bidnetdirect.com, in accordance with the bid instructions and all other requirements as referenced in this document. Bids will be received until **March 4, 2026, 2:00 pm**, local time, after which no other bids will be accepted. The Procurement Department will publicly record all bids at that time. No other public disclosure will be made until after award of contract.



INSTRUCTIONS TO BIDDERS

1. Firms responding to this INVITATION FOR BIDS ("IFB") shall submit their bids in the overall format as outlined in this solicitation.
2. Bidders shall submit **one original copy**, electronically, identifying the response as follows:

Bid Title: INSTALLATION OF RUBBER FLOOR TILE AT MONTEITH BRANCH LIBRARY

- Bid Number: IFB-TL-2170
- Bid Due Date: March 4, 2026, 2:00 pm EST
- Company's name and address
- Bid must be signed to be acceptable

No telephone, electronic, or facsimile bids will be considered unless otherwise stated within this document.

3. **Late Bids will not be accepted or considered.** It is the responsibility of the Vendor to ensure that the bid is uploaded electronically prior to the date and time indicated. Telephone quotes will not be accepted. Time and date validation will occur in the Bidnet system and bids cannot be uploaded after the deadline.
4. **VENDOR CHANGES OR ALTERATIONS TO BID DOCUMENTS INCLUDING SPECIFICATIONS MAY RESULT IN A BID BEING CONSIDERED NON-RESPONSIVE.** The only authorized vendor changes to a bid document will be in the areas provided for a bidder's response, including the "Exceptions" section of the bid proposal. If a change or alteration to the documents is undetected and the bidder is awarded a contract, the original terms, conditions, and specifications in the Authorized Version of the bid document will be applicable during the term of the contract. The Detroit Public Library shall accept NO CHANGES to the bid document made by the Vendor unless those changes are set out in the "Exceptions" provision of the Authorized Version of the bid document. It is the Vendor's responsibility to acquire knowledge of any changes, modifications or additions to the Authorized Version of the bid document. Any Vendor who submits a bid and later claims it had no knowledge of any changes, modifications or additions made by the Detroit Public

Library to the Authorized Version of the bid document, shall be bound by the bid, including any changes, modifications or additions to the Authorized Version. If a bid is awarded to a Vendor who claims that it had no knowledge of the changes,



modifications or additions made by the Detroit Public Library to the Authorized Version of the bid, and that Vendor fails to accept the bid award, the Detroit Public Library may pursue costs and expenses to re-bid the item from that Vendor.

5. The Authorized Version of the bid document shall be that bid document appearing on the MITN website with any amendments and updates. The Detroit Public Library officially distributes bid documents from the Procurement Department or through the Michigan Intergovernmental Trade Network (MITN) website. Copies of bid documents obtained from any other source are not considered official copies. Only those vendors who obtain bid documents from either the Procurement Department or the MITN website are guaranteed access to receive addendum information, if such information is issued. If you obtained this document from a source other than the sources indicated, it is recommended that you register on the MITN website, www.bidnetdirect.com and obtain an official copy.
6. Bids must be dated and signed by a duly authorized partner or corporate officer, with that person's name and title clearly identified. No bid shall be withdrawn for ninety (90) days from submission deadline unless otherwise stated in the bid document.
7. The Detroit Public Library reserves the right to:
 - a. Reject any and all bids received as a result of this IFB.
 - b. Waive or decline to waive any informalities and any irregularities in any bid received.
8. The selected vendor will be required to assume responsibility for all goods and services offered in the bid, whether or not the bidder produces them. Further, the selected vendor shall be the sole point of contact and responsibility with regard to all contractual matters, including payment of any and all charges resulting from the contract. All bids and other materials submitted shall become the property of the Detroit Public Library.
9. All changes in the IFB documents shall be through written addendum and furnished to all bidders. Verbal information obtained otherwise will not be considered in awarding of the bid.
10. Mandatory Site Visit

All prospective bidders are required to attend the mandatory site visit at the Monteith Branch Library.



11. RSVP to attend the mandatory site visit by emailing the Procurement Manager at, tlove@detroitpubliclibrary.org, no later than Friday, February 20, 2026, 4:00 p.m. EST.

The mandatory site visit schedule is as follows:

Monday, February 23, 2026 8:00 a.m.
Monteith Branch Library
14100 Kercheval Ave.
Detroit, MI 48215

12. Public Recording

A virtual meeting has been established for any prospective proposers that may be interested in the public recording of bids for the Detroit Public Library. Please see the following link for the public recording of the bids:

Microsoft Teams meeting

Join: <https://teams.microsoft.com/meet/29538076457444?p=AjRfTvby2Bgm1oxHOK>

Meeting ID: 295 380 764 574 44

Passcode: 9Fe6Fq9G

13. Procurement Timeline

Activity	Due Date
IFB Issued:	Tuesday, February 11, 2026
Site Visit RSVP Deadline (via Email):	Friday, February 20, 2026 4:00 PM EST
Site Visit (Mandatory)	Monday, February 23, 2026 8:00 AM EST
Vendor Questions Due (Bidnet Direct):	Thursday, February 26, 2026 4:00 PM EST
DPL Response to Questions (Bidnet Direct):	Friday, February 27, 2026 EOD
Bids Due:	Wednesday, March 4, 2026 2:00 PM EST
Public Bid Opening (Teams):	Wednesday, March 4, 2026 2:05 PM EST



SCOPE OF WORK

1. Project Overview

The Detroit Public Library (DPL) is seeking bids from qualified contractors to remove existing carpet flooring and furnish and install rubber floor tile in the Children's Area of the Monteith Branch Library. The work area is approximately 1,800 square feet. All work shall be completed in accordance with this Scope of Work, applicable codes, and manufacturer requirements.

2. General Scope of Work

The Contractor shall provide all labor, supervision, materials, equipment, tools, and incidentals necessary to deliver a complete and fully finished project, including but not limited to:

- Removal and proper disposal of existing carpet flooring
- Preparation of the subfloor to receive new rubber flooring
- Furnishing and installation of rubber floor tiles
- Site protection, daily cleanup, and final cleanup
- Coordination with DPL Facilities staff
- Compliance with all applicable Federal, State of Michigan, and City of Detroit codes and regulations

The Contractor is responsible for verifying all field dimensions prior to bid submission.

3. Owner Responsibilities

DPL will ensure the Children's Area is free of furniture and other obstructions prior to the start of work.

4. Work Schedule and Access

- Work shall be performed Monday through Friday, eight (8) hours per day.
- Work start time shall be 7:00 a.m. or 8:00 a.m., as coordinated with DPL.
- The Library will be closed to the public during construction.
- A written Notice to Proceed will be issued prior to commencement of work.

5. Flooring Product Requirements

The Contractor shall furnish and install the following, or approved equal:

- 24" x 24" rubber floor tiles
- Flexco NC-2024-150 (green base with cream, gray, and green flecks)
- Overall thickness: 3.5 mm (0.14 inches)
- Rubber content: approximately 38% Styrene Butadiene Rubber (SBR)
- Tile backing shall be smooth and double-sanded
- Flooring shall contain natural fillers and environmentally safe pigments



No substitutions will be accepted unless explicitly approved in writing by DPL.

6. Submittals

The successful bidder shall submit the following prior to installation:

- Manufacturer's product data
- Installation instructions
- Maintenance recommendations
- Warranty documentation

7. Surface Preparation

- All preparation shall comply with ASTM F710 and manufacturer recommendations
- Remove all substances incompatible with flooring adhesive
- Fill voids, cracks, and depressions using manufacturer-approved leveling compounds
- Remove projections and repair defects to manufacturer tolerances
- Subfloor shall be vacuumed and free of debris prior to installation

8. Installation

Rubber flooring shall be installed strictly in accordance with the manufacturer's printed instructions and industry best practices to ensure proper adhesion, alignment, and finish.

9. Examination of Existing Conditions

The Contractor shall examine the site prior to installation and confirm conditions are suitable for flooring installation in accordance with manufacturer requirements. Submission of a bid constitutes acknowledgment of existing site conditions.

10. Mandatory Pre-Bid Site Visit

A mandatory pre-bid walkthrough and inspection of existing conditions will be conducted. Attendance and sign-in are required. Contractors who do not attend the mandatory site visit will be deemed non-responsive and ineligible to bid.

11. Insurance

The Contractor shall furnish Workers' Compensation and Liability Insurance in accordance with Detroit Public Library requirements, as outlined in Appendix A.

12. Protection of Building and Site

The Contractor shall take all necessary precautions to protect existing building components, finishes, and surrounding areas. The Contractor shall be responsible for repairing any damage resulting from its operations.



13. Site Cleanup and Disposal

- Contractor shall provide a dumpster on site during construction
- All debris shall be removed daily
- The site shall be left clean and free of materials at the conclusion of work
- The dumpster shall be removed no later than one (1) day after project completion

14. Warranty

The Contractor shall provide:

- Manufacturer's standard one-year warranty against defects in materials and workmanship
- Manufacturer's standard ten-year limited wear warranty, as applicable

15. Sales Tax Exemption

The Detroit Public Library is exempt from Michigan sales tax. DPL will provide its tax exemption documentation for material purchases related to this project.



MINIMUM QUALIFICATIONS AND EXPERIENCE

Proposers must demonstrate the necessary qualifications and experience to successfully perform the scope of work and be eligible to enter into a contract with the Detroit Public Library (DPL). The following information must be included in the Bid:

1. **Project Team Qualifications**
 - Identify the proposed Project Manager who will serve as the primary contact and be responsible for managing all aspects of the contract.
2. **Relevant Project Experience**
 - Describe at least **three (3)** similar projects completed within the past **five (5) years**, preferably for public or institutional clients, demonstrating experience aligned with the Scope of Work.
 - Include references with current contact information for each project.
3. **Project Timeline and Work Plan**
 - Present a detailed timeline and work plan covering key phases, deliverables, staffing, and coordination with DPL.
4. **Cost Proposal**
 - The cost proposal must be submitted with a bread down by task and any optional services.

BID SUBMISSION

Proposers must submit their bid as a **PDF without password protection or restrictions**.

The bid must include the following components:

1. Identification of the offering firm(s), including name, address, and telephone number.
2. Acknowledgment of any IFB addenda.
3. Name, title, address, telephone number, and email address of the proposer's contact person during the proposal evaluation period.
4. A statement confirming the proposal will remain valid for a minimum of **ninety (90) days** from the date of submission.
5. Signature of the person authorized to bind the proposer to the terms of the IFB.

BID CONTENT

To be considered responsive, the bid must fully address the following sections of the IFB:



- Overall Scope of Work and Operational Responsibilities
- Respondent's Performance History and Qualifications

PRICE PROPOSAL SUBMISSION

The Price Proposal should include:

- A detailed fee schedule broken down by facility and/or task, including any optional services.
- Hourly rates, unit prices, or lump sum fees as applicable.
- Any assumptions or conditions related to pricing.
- Payment terms and conditions.

The Detroit Public Library reserves the right to request additional pricing information or clarifications during the evaluation process.



METHODOLOGY AND APPROACH

Provide a narrative of how the Proposer intends to communicate and work with DPL on the various projects that may arise.

- Describe proposed responsibilities of the Proposer's assigned staff and coordination of activities with DPL
- Provide details on capacity, availability, scheduling, turnaround times, and response times of the Project Manager and staff
- Address any additional tasks not outlined in this IFB that should be considered

EXCEPTIONS AND DEVIATIONS

Include any approved exceptions and/or deviations to the IFB or addenda. Include any and all of the firm's own contracts or forms that it considers mandatory to use in connection with performing the Scope of Work. Note that to the extent that a firm's own contracts or forms contradict or purport to exclude any provisions of the IFB or addenda in whole or in part, the same will be treated as exceptions and/or deviations. Please note that any exceptions and/or deviations not approved in advance by DPL through addenda may result in the rejection of the proposal.

OWNERSHIP OF WORK PRODUCTS

The work products produced by the selected firm will become the sole property of DPL. This includes all work products produced in the media types, and includes, but is not limited to, program specific files such as database files and CADD files.

AWARD CLAUSE INCLUDING RENEWAL OPTIONS

If a contract is awarded as a result of this IFB it will be a Detroit Public Library Professional Services Contract. Any renewal option exercised under this contract is effective only after the approval of the Detroit Library Commission and the Chief Financial Officer. The Library anticipates one (1) award as a result of the IFB subject to approval by the Detroit Library Commission.

CONTRACT APPROVAL

Upon contract award, the Library and the respondent shall execute a Professional Services Contract, which shall contain all contractual terms and conditions in a form provided by the Library. No contract shall become effective until the contract has been approved by the required Library Departments and Detroit Library Commission and signed by the Library's Chief Financial Officer. Prior to the completion of this approval process, the respondent shall have no authority to begin work under the contract. The Chief Financial Officer shall not authorize any payments to the respondent prior to such approvals; nor shall the Library incur any liability to reimburse the respondent regarding any expenditure for the purchase of materials or the payment of services.



ADHERENCE TO TERMS OF PROPOSALS

A proposal once accepted by the Library, may become a binding contractual obligation of the respondent. The failure of a successful respondent to accept this obligation and to adhere to the terms of the respondent's proposal may result in rejection of the proposal and the cancellation of any provisional award to the respondent.

REJECTION OF PROPOSALS

The Library expressly reserves the right to reject any and all proposals, waive any non-conformity, re-advertise for proposals, to withhold the award for any reason the Library determines and/or to take any other appropriate action that is in the best interest of the Library.

QUESTIONS

All questions regarding the IFB shall be submitted through www.bidnetdirect.com. Respondents shall provide notice to take exception to any requirements of the Invitation for Bid. Such exceptions may reflect negatively on the evaluation of the Proposal. The Library does not guarantee a response to questions not submitted after the question deadline of February 26, 2026, 4:00 pm.

ECONOMY OF PREPARATION

Proposals should be prepared simply and economically providing a straight forward, concise description of the contractor's ability to meet the requirements of the IFB. Emphasis should be on the completeness and clarity of content.

PAYMENT

All properly executed invoices submitted by the successful respondent will be paid in accordance with the Library's payment terms (Net 45). The Detroit Public Library does **not** provide advance deposits or upfront payments prior to the commencement of work. Payments will be made only for work completed and accepted in accordance with the terms of the contract.

ASSIGNMENT

The services to be performed by the respondent shall not be assigned, sublet, or transferred, nor shall the respondent assign any monies due or to become due to him under any contract entered into with the Library pursuant to these specifications, without prior written approval of the Library.

MISCELLANEOUS

It shall be the responsibility of the respondent to thoroughly familiarize themselves with the provisions of these requirements. After executing the contract, no consideration will be given to any claim of misunderstanding.



The respondent agrees to abide by the rules and regulations as prescribed herein by the Library as the same now exists or may hereafter from time-to-time be changed in writing.

MODIFICATION OF SERVICES AFTER CONTRACT APPROVAL

The Library reserves the right to modify the services provided by the respondent awarded a contract. Any modification and resulting changes in pricing shall be made by amendment to the contract by the respondent and the Library.

CHANGES IN FACTS

Proposers shall advise the Library during the time the Proposal is open for consideration of any changes in the principal officers, organization, financial ability of, or any other facts presented in the proposal with respect to the proposer or the proposal immediately upon occurrence.

CONFIDENTIALITY OF PROPOSALS

Proposals shall be opened with reasonable precautions to avoid disclosure of contents to competing offers during the process of evaluation. Once proposals have been publicly recorded they are subject disclosure as per the requirements of the Michigan Freedom of Information Act.

NEWS RELEASE

News releases pertaining to these proposal specifications or the provisions to which they relate shall not be made without prior approval of the Library.

CHANGES IN PROPOSAL REQUIREMENTS

The Library may make changes to the requirements of this IFB, as it deems necessary. Respondents will be notified by email if any changes are made to the IFB. If changes are made, the Library may, at its discretion, extend the time allowed for submission of proposals.



REFERENCES

Proposers shall provide three (3) references for services outlined in this IFB. References shall be from projects of similar size and scope as the Library. These services should have been provided within the past five (5) years.

REFERENCE #1	
COMPANY NAME	
CONTACT PERSON	
ADDRESS	
PHONE NUMBER	
EMAIL	
YEARS OF EXPERIENCE	

REFERENCE #2	
COMPANY NAME	
CONTACT PERSON	
ADDRESS	
PHONE NUMBER	
EMAIL ADDRESS	
YEARS OF SERVICE	

REFERENCE #3	
COMPANY NAME	
CONTACT PERSON	
ADDRESS	
PHONE NUMBER	
EMAIL ADDRESS	
YEARS OF SERVICE	



CERTIFICATE OF INSURANCE

- I. The Detroit Public Library has specific certificate of insurance requirements. The Contractor shall maintain at its expense during the term of this contract, the following insurance:
 - A. Worker's Compensation insurance with Michigan statutory limits and Employer's Liability insurance with minimum limits of \$500,000.00 each accident, \$500,000.00 each disease, \$500,000.00 each disease/each employee.
 - B. Commercial General Liability insurance with a combined single limit of \$1,000,000.00 per occurrence subject to a minimum aggregate limit of \$2,000,000.00
 - C. Automobile Liability insurance covering all owned, hired and non-owned vehicles with personal protection insurance and property protection insurance to comply with the provisions of the Michigan No-Fault Insurance Act, including residual liability insurance with a minimum combined single limit of \$1,000,000.00. Include MCS90 endorsement (if hazardous waste will be transported by supplier's auto) with minimum property damage limits of \$1,000,000.00 each occurrence.
- II. If during the term of this contract, changed conditions or other pertinent factors, should in the reasonable judgment of the Detroit Public Library, render inadequate the insurance limits, the Contractor will furnish on demand such additional coverage as may reasonably be required under the circumstances. All such insurance shall be affected at the contractor's expense, under valid and enforceable policies.
- III. All policies shall name the Contractor as the insured and shall be accompanied by a commitment from the insurer that such policies shall not be canceled or reduced without at least thirty (30) days prior notice to the Detroit Public Library.

The Commercial General Liability insurance policy shall name the Detroit Public Library as an additional insured. Certificates of insurance evidencing such coverage shall be submitted to the Business Office, Purchasing Department, prior to the commencement of performance under this contract and at least fifteen (15) days prior to the expiration dates.



NON-COLLUSION AFFIDAVIT

IFB Number: _____ IFB Description: _____

I state that I am _____ of _____
(Title) (Name of Firm)

and that I am authorized to make this affidavit on behalf of my Firm, its Owner, Directors, and Officers. I am the person responsible in my firm for the price(s) and the amount of the bid.

I state that:

1. The price(s) and the amounts of this bid have been arrived at independently and without consultation, communication or agreement with any other contractor, bidder or potential bidder.
2. Neither the price(s) nor the amount of the bid, and either the approximate price(s) or the approximate amount of the bid, have been disclosed to any other firm or person who is a bidder or potential bidder, and they will not be disclosed before the bid opening.
3. No attempt has been made or will be made to induce any firm or person to refrain from bidding on this contract, or to submit a bid higher than this bid, or to submit any intentionally high or noncompetitive or other form of complementary bid.
4. The bid of my firm is made in good faith and not pursuant to any agreement or discussion with, or inducement from, any firm or person to submit a complementary or noncompetitive bid.
5. _____, its affiliates, subsidiaries, officers, directors and employees are not currently under investigation by any governmental agency and have not in the last four years been convicted or found liable for any act prohibited by State or Federal law in any jurisdiction, involving conspiracy or collusion with respect to bidding on any public contract, except as follows:

SIGNATURE OF PERSON SUBMITTING BID

BID NOTARY'S SIGNATURE

Subscribed and sworn to before me this _____ day of _____,
20__ in and for _____ County.

My commission expires: _____



SIGNATURE PAGE

Prices quoted shall remain firm for 90 days or bid award whichever comes first, except the successful bidder(s), whose prices shall remain firm for the entire contract period. The contract shall commence on date of award.

NOTE: The undersigned has checked the bid figures carefully and understands that he/she shall be responsible for any error or omission in this bid offer and is in receipt of all addenda as issued.

COMPANY NAME: _____

ADDRESS:

City State Zip

TAX ID: _____

TELEPHONE NUMBER: (____) _____ FAX NUMBER: (____) _____

E-MAIL ADDRESS: _____

PAYMENT TERMS: _____

ACKNOWLEDGEMENT:

I, _____, certify that I have read the INSTRUCTION TO BIDDERS and that the bid proposal documents contained herein were obtained directly from the Detroit Public Library or MITN website, www.bidnetdirect.com, and is an official copy of the Authorized Version.

COMPANY REPRESENTATIVE'S NAME:

(Print)

SIGNATURE OF AUTHORIZED COMPANY REPRESENTATIVE:

(Signature)

(Date)